

HOUSE No. 4128

The Commonwealth of Massachusetts

PRESENTED BY:

Paul McMurtry

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to establishing a commission to study gambling winnings.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Paul McMurtry</i>	<i>11th Norfolk</i>	<i>1/17/2025</i>

HOUSE No. 4128

By Representative McMurtry of Dedham, a petition (accompanied by bill, House, No. 4128) of Paul McMurtry for an investigation by a special commission (including members of the General Court) relative to the threshold amounts for lottery and gambling taxation. Revenue.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to establishing a commission to study gambling winnings.

Whereas, The deferred operation of this act would tend to defeat its purpose, which is to establish a special commission to study lottery and gambling taxation in the commonwealth, therefore it is hereby declared to be an emergency law, necessary for the immediate preservation of the public convenience.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 (a) There shall be established, pursuant to section 2A of chapter 4 of the General Laws, a
2 special commission to study the threshold amounts for lottery and gambling taxation in the
3 commonwealth.

4 (b) The special commission shall be comprised of the following members: the chairs of
5 the joint committee on revenue or their designees, who shall serve as co-chairs; the chair of the
6 Massachusetts gaming commission or their designee; the state treasurer or their designee; the
7 secretary of administration and finance or their designee; the commissioner of revenue or their
8 designee; 1 member appointed by the speaker of the house of representatives; 1 member

9 appointed by the minority leader of the house of representatives; 1 member appointed by the
10 president of the senate; and 1 member appointed by the minority leader of the senate.

11 (c) The study shall include, but not be limited to: (i) a review of the amount of lottery and
12 gambling taxation thresholds and the impact it has on the commonwealth; (ii) analysis on the
13 economic implications of lottery and gambling taxation thresholds in the commonwealth; (iii)
14 comprehensive data gathered on lottery and gambling taxation thresholds amounts to inform
15 policy recommendations; and (iv) any recommendations on a more optimal lottery and gambling
16 taxation threshold.

17 (d) The commission shall prepare a report detailing the results of the study, along with
18 any recommendations and any proposed standards and legislation necessary to carry out its
19 recommendations. The report shall be submitted to the: (i) joint committee on revenue; (ii) house
20 and senate committees on ways and means; and (iii) clerks of the house of representatives and
21 senate not later than December 31, 2026.